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No. 94-590

IN THE
Supreme Court of the United States
OCTOBER TERM, 1994

VERNONIA SCHOOL DISTRICT 47J,
Petitioner,

vs.

WAYNE and JUDY ACTON,
guardians ad litem for JAMES ACTON,
Respondents.

On Writ of Certiorari to the
United States Court of Appeals
for the Ninth Circuit

JOINT APPENDIX

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PETITION FOR CERTIORARI FILED SEPTEMBER 30, 1994
CERTIORARI GRANTED NOVEMBER 28, 1994

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Opinion of the United States District for the District of Oregon issued May 7, 1992	Pet. App. B at 76a
Order of the United States District Court of Appeals for the Ninth Circuit denying Defendant's Petition for Rehearing and Rejecting Suggestion for Rehearing <i>En Banc</i> filed July 8, 1994	Pet. App. C at 143a

CHRONOLOGICAL LISTING OF
RELEVANT DOCKET ENTRIES

Date	Description
A. United States District Court for the District of Oregon (Case No. 91-1154-MA)	
11/04/91	Complaint for Declaratory and Injunctive Relief and Plaintiffs' Motion for Appointment of Guardians Ad Litem filed.
11/18/91	United States District Court for the District of Oregon grants Plaintiffs' Motion for Appointment of Guardians Ad Litem.
11/22/91	Defendant's Answer filed.
01/03/92	Plaintiffs file Motion for Judgment on the Pleadings.
03/02/92	United States District Court for the District of Oregon denies Plaintiffs' Motion for Judgment on the Pleadings.
04/28/92	Pretrial conference held and United States District Court for the District of Oregon issues Order receiving Plaintiffs' Trial Exhibits 1 through 5 and Defendant's Trial Exhibits 101, 103, 105 through 107 and 109, and rejecting Defendant's Trial Exhibits 102 and 108.
04/29/92	Trial commences in the United States District Court for the District of Oregon before the Honorable Judge Malcom F. Marsh.
05/07/92	United States District Court for the District of Oregon issues Opinion, enters Order denying Plaintiffs' claims for declaratory and injunctive relief, and enters Judgment dismissing action.
06/02/92	Plaintiffs file Notice of Appeal to the United States Court of Appeals for the Ninth Circuit.

Date	Description
B. United States Court of Appeals for the Ninth Circuit (Case No. 92-35520)	
09/22/92	Plaintiffs file opening Brief.
10/19/92	Defendant files Brief in Opposition.
11/04/92	Plaintiffs file Reply to Brief in Opposition.
11/03/93	Argued and Submitted to the United States Court of Appeals for the Ninth Circuit, before the Honorable Judges Stehen R. Reinhardt, Melvin Brunetti and Ferdinand F. Fernandez.
05/05/94	United States Court of Appeals for the Ninth Circuit issues Opinion and enters Judgment reversing and remanding Opinion and Order of United States District Court for the District of Oregon.
05/19/94	Defendant files Petition for Rehearing with Suggestion for Rehearing En Banc.
07/08/94	United States Court of Appeals for the Ninth Circuit files Order denying Defendant's Petition for Rehearing and Rejecting Suggestion for Rehearing En Banc.
C. The Supreme Court of the United States (Case No. 94-590)	
09/30/94	Defendant files Petition for Writ of Certiorari.
10/31/94	Plaintiffs file Brief in Opposition to Writ of Certiorari.
11/18/94	Defendant files Reply to Brief in Opposition to Writ of Certiorari.
11/28/94	The Supreme Court of the United States grants Certiorari.

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

Civil No. 91-1154MA

WAYNE and JUDY ACTON,
guardians ad litem for JAMES ACTON,
Plaintiffs,

vs.

VERNONIA SCHOOL DISTRICT 47J,
Defendant.

**COMPLAINT FOR DECLARATORY
AND INJUNCTIVE RELIEF**

(Deprivation of Civil Rights)

Plaintiffs allege:

PARTIES

1.

Defendant Vernonia School District 47J (the district) is a public school district, located in this judicial district, organized under Oregon law and acting under color of that state's law at all times mentioned below.

2.

James Acton (James) is a minor and a citizen of Oregon.

3.

Plaintiffs are citizens of Oregon and James's guardians ad litem.

4

JURISDICTION

4.

This case arises under 42 U.S.C. 1983 and 1988. This court has jurisdiction under 28 U.S.C. 1331 and 1343.

ALLEGATIONS COMMON TO ALL CLAIMS

5.

James is enrolled in a school operated by the district.

6.

The district has adopted a "Student Athlete Drug Policy," which prohibits a student from participating in any district-sponsored athletic program unless the student, through the student's "parent and/or guardian," consents to be tested for illegal drug use at the outset of the program, and also consents to random, suspicionless drug testing during the course of the program. (A copy of the policy is appended to this complaint as Exhibit A.)

7.

James wants to participate in district-sponsored athletic programs.

8.

James does not take drugs and the district has no reason to suspect that he does.

9.

James declines to consent to drug testing on the ground it violates his constitutional rights. Relying on the policy described above, the district refuses to let James participate in district-sponsored athletic programs.

5

FIRST CLAIM

10.

The district's refusal to let James participate in district-sponsored athletic programs violates the Fourth and Fourteenth Amendments to the United States Constitution.

SECOND CLAIM

11.

The district's refusal to let James participate in district-sponsored athletic programs violates Article I, Section 9, of the Oregon Constitution.

THIRD CLAIM

12.

The district's refusal to let James participate in district-sponsored athletic programs is unlawful because the district lacks statutory authority to adopt or enforce its drug testing policy.

FOURTH CLAIM

13.

Plaintiffs are entitled to recover reasonable attorney fees under 42 U.S.C. 1988 if they prevail on their first claim.

DEMAND FOR JUDGMENT

14.

Plaintiffs demand that the court:

(a) Declare that the district's drug-testing policy is unlawful;

(b) Enjoin the district from enforcing the policy against James and from interfering with his participation in district-sponsored athletic programs;

- (c) Award costs to plaintiffs;
- (d) Award attorney fees to plaintiffs; and
- (e) Award any additional relief the court deems proper.

Respectfully submitted,

/s/ Thomas M. Christ
 THOMAS M. CHRIST
 OSB No. 83406
 ACLU Foundation of Oregon, Inc.
 Attorney for Plaintiffs

EXHIBIT A

Code: JFCI
 Adopted: 9/14/89
 Revised: 8/9/90
 Orig. Code:

STUDENT ATHLETE DRUG POLICY

DEFINITIONS:

Drug:

Any substance considered illegal or controlled by the Food and Drug Administration.

Student Athlete:

Any student participating in athletic practices and/or contests under the control and jurisdiction of the Vernonia School District.

Sport Season:

Fall, Winter, and Spring seasons begin on the first day of practice allowed by the Oregon School Activity Association and end the day prior to the beginning date of practice of the next season.

POLICY STATEMENT:

In order to provide for the health and safety of the individual athlete and other athletes, as well as providing a legitimate reason for students to say "no" to drug use and providing an opportunity for those taking drugs to receive help in locating programs which can provide assistance, the District is conducting a mandatory drug testing program for student athletes. The program is not punitive. It is designed to create a safe, drug free, environment for student athletes and assist them in getting help when needed.

PROCEDURES:

Consent:

The parent and/or guardian and the student athlete is required to sign a written consent for drug testing prior to participating in the athletic program. Any time an athlete refuses to be tested, he/she will be suspended from the team for the remainder of the season.

Medication:

Student athletes who have been or who are or have been taking prescription medication must provide verification (either by a copy of the prescription or by doctor's authorization) prior to being tested. Student's who refuse to provide verification and test positive will be subject to the actions specified below for "positive tests."

Student Selection:

All student athletes may be tested at the beginning of each season. Random testing will be conducted during the sports season. Students selected for random testing will be selected by having their names drawn from a "pool" of student athletes.

"Positive" Test:

If the student's test indicates positive results, a second test may be administered as soon as possible to confirm the results. Parents will be notified after the second positive test. If the second test is negative, no further action will be taken. If the second test is positive, the following action will be taken:

First Offense

1. Notify parent or guardian.
2. A due process hearing will be conducted by the principal with the parent/guardian and the student.
3. Student will be given the option of:
 - a. Participating in assistance programs and taking a weekly drug test for six weeks or,
 - b. Be suspended from participating in athletics for the remainder of the current season and the next athletic season. The student will be retested before beginning the next season for which he/she is eligible.

Second Offense

1. Notify parent or guardian.
2. A due process hearing will be conducted by the principal with the parent/guardian and the student.
3. The student is suspended from participating in athletics for the remainder of the current season and the next athletic season for which he/she is eligible.

Third Offense

1. Notify parent or guardian.
2. A due process hearing will be conducted by the principal with the parent/guardian and the student.
3. The student is suspended from participating in athletics for the remainder of the current season and the next two athletic seasons for which he/she is eligible.

VOLUNTEER DRUG TESTING

POLICY STATEMENT:

In order to provide for the health and safety of the individual student and other students, as well as providing a legitimate reason for students to say "no" to drug use

and providing an opportunity for those taking drugs to receive help in locating programs which can provide assistance, the District is conducting a voluntary drug testing program for students. The program is not punitive. It is designed to create a safe, drug free, environment for students and assist them in getting help when needed.

PROCEDURES:

Consent:

The parent and/or guardian and the student is required to sign a written consent for drug testing prior to being tested.

Medication:

Students who are or have been taking prescription medication must provide verification (either by a copy of the prescription or by doctor's authorization) prior to being tested. Student's who refuse to provide verification and test positive will be subject to the actions specified below for "positive tests."

"Positive" Test:

If the student's test indicates positive results, the parents will be notified and no other action will be taken.

GENERAL AUTHORIZATION FORM

I understand fully that my performance as a participant and the reputation of my school are dependent, in part, on my conduct as an individual. I hereby agree to accept and abide by the standards, rules, and regulations set forth by Vernonia School District Board and the sponsors for the activity in which I participate.

I also authorize the Vernonia School District to conduct a test on a urine specimen which I provide to test

for drugs and/or alcohol use. I also authorize the release of information concerning the results of such a test to the Vernonia School District and to the parents and/or guardians of the student.

This shall be deemed a consent pursuant to the Family Education Right to Privacy Act for the release of the above information to the parties named above.

Student Signature

Parent or Guardian Signature

Address

Date

END OF POLICY

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

No. 91-1154MA

(Title Omitted in Printing)

ANSWER

Defendant, for answer to plaintiffs' Complaint, states as follows:

1. Defendant admits paragraphs 1, 2, 3, 4, and 5 of plaintiffs' Complaint.

2. Answering paragraph 6, defendant admits that it has adopted a student athlete drug policy, which policy is attached as Exhibit A to plaintiff's Complaint. Defendant denies each and every remaining allegation of paragraph 6 of plaintiffs' Complaint.

3. Answering paragraphs 7, 8, and 9 of plaintiffs' Complaint, defendant states that it is without sufficient knowledge to form a response to plaintiffs' allegations concerning the desires, activities and motivations of James Acton and for that reason denies the allegations of paragraphs 7, 8, and 9 of plaintiffs' Complaint. Defendant admits in further response to paragraph 9 that it declines to permit James Acton to participate in the district sponsored athletic programs without his having complied with the policy.

4. Defendant denies each and every remaining allegation of plaintiffs' Complaint except as specifically admitted above.

FIRST AFFIRMATIVE DEFENSE

5. Defendant's student athlete drug policy is rationally related to legitimate district interests including, inter alia, the health, safety, well-being and education of the students under its care.

SECOND AFFIRMATIVE ACTION

6. Defendant's actions were in good faith and based upon a reasonable belief of the lawfulness of the conduct alleged.

Wherefore, having fully answered plaintiffs' Complaint, defendant prays for judgment in its favor dismissing plaintiffs' claims, and prays for its costs and disbursements herein together with its reasonable attorneys' fees pursuant to 42 USC § 1988.

RESPECTFULLY SUBMITTED this 21st day of November, 1991.

LANE POWELL SPEARS LUBERSKY

By /s/ Paula A. Barran
PAULA A. BARRAN
OSB #80397
DAVID G. HOSENPUDE
OSB #83241
Attorneys for Defendant

(Affidavit of Mailing Omitted in Printing)

[Filed May 7, 1992]

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

(Title Omitted in Printing)

ORDER

MARSH, Judge.

In accordance with my opinion issued on this date, plaintiffs' claims for injunctive and declaratory relief are denied.

IT IS SO ORDERED.

DATED this 7 day of May, 1992.

/s/ Malcolm F. Marsh
MALCOLM F. MARSH
United States District Judge

[Filed May 7, 1992]

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

(Title Omitted in Printing)

JUDGMENT

MARSH, Judge.

Based on the record, this action is dismissed.

DATED this 7 day of May, 1992.

/s/ Malcolm F. Marsh
MALCOLM F. MARSH
United States District Judge

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

(Title Omitted in Printing)

PARTIAL TRANSCRIPT OF DIRECT,
CROSS AND REDIRECT-EXAMINATION
OF JAMES ACTON

* * * *

[12] DIRECT EXAMINATION

* * * *

BY MR. CHRIST:

Q. James, how old are you?

A. 12.

Q. And what is your birth date?

A. June 15th.

Q. Do you go to school?

A. Yes.

Q. Where do you go to school?

A. Washington Grade School

Q. Do you like sports, James?

A. Yes.

Q. Which sports do you like?

A. Basketball and track and I don't know about football. I was going to go out for it.

Q. Did you go out for football last fall?

A. Yes.

Q. Did you go to any practices?

A. Practice, but after that, no.

Q. What happened after that?

A. I took home that sheet that we had to sign and we decided not to sign it over the weekend.

Q. Who's "we"?

[13] A. Me, my dad and my mom.

Q. You didn't want to sign it either, did you?

A. No.

Q. Why didn't you want to take the drug test?

A. Because I feel that they have no reason to think I was taking drugs.

Q. Do you still want to play sports if they'll let you play without taking the test?

A. Yes.

MR. CHRIST: That's all I have, Your Honor.

THE COURT: Cross.

MR. POWELL: I have a couple of quick questions, Your Honor.

CROSS-EXAMINATION

BY MR. POWELL:

Q. James, before you went out for football did you have a physical exam?

A. Yes.

Q. And as part of that physical did you give a urine sample?

[14] A. Yes.

MR. POWELL: We have nothing further, Your Honor.

THE COURT: Redirect?

REDIRECT EXAMINATION

BY MR. CHRIST:

Q. James, where was that exam?

A. At the Vernonia Health Clinic.

Q. And tell the judge how you gave the urine sample.

A. They had to close the door in there and peed in a cup and they handed it through a wall.

Q. Was anyone in the room with you?

A. No.

Q. No one was watching?

A. No.

Q. Was anyone standing outside listening?

A. No.

MR. CHRIST: Nothing further, Your Honor.

THE COURT: All right. Thank you. You may step down, James.

* * * *

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

Case No. 91-1154-MA

THE HONORABLE MALCOM F. MARSH

(Title Omitted in Printing)

PARTIAL TRANSCRIPT OF DIRECT- AND
CROSS-EXAMINATION OF RALPH AULTMAN,
Principal of Washington Grade School and
Former Assistant Superintendent of Vernonia School District
and Former Principal of Vernonia High School

* * * *

[18] DIRECT EXAMINATION

* * * *

Q. Mr. Aultman, can you generally describe the Vernonia community?

A. Yes. Beings I was raised there and came back about 13 years later, Vernonia is a community about 1700 people in the city limits, about 1300 other people on the outside of the city limits. Primary industry is logging. We do have some people that work out in the valley and in the technological field Wah Chang, Nike, Tektronix. Low social economic factor in Vernonia, we have about 25, 30 percent of our kids who are on privalegde lunches.

The community is very solid from the standpoint that when the mill shut down in '59 they thought the city would fold, but it did not. It stayed together. So Vernonia is a typical small town, a lot of pride in its existence and it's like a lot of other small communities that aren't.

Q. Mr. Aultman, what role does interscholastic athletics play in the Vernonia community?

A. It plays a very, very big part. You know, you look around and you see about four or [19] five kids here from Vernonia and all of them are interested in sports and they all play sports because in Vernonia there's not much else to do. We don't have any fast food franchises, there are no teen centers, the entire factor of the community centers around the school, and therefore, the outlet for our young people is athletics.

It's a big thing. Everyone wants to play sports. It's an opportunity for competition and it—give you an example. In '83 we had a budget crunch. They were cutting teachers, we lost our forestry program. They were also going to cut athletics. Well, the people tried to keep the program, the academic programs there too, but many people went out and chopped wood and sold wood to finance the athletic program because it's all their kids had. A booster club was formed to try to get money to kept the athletic programs going because they realized it's a very important part of our community.

Q. And what role did the athletes themselves play in the community?

A. Well, if you're an athlete you're looked up to in our Vernonia system. Everyone wants to play if they can. And we deem it very important to [20] try and get as many people involved as possible. And it's just important, you know, to wear that lettermen's jacket in a small community. I still have mine from 1962.

Q. And can you estimate the level of participation in interscholastic athletics?

A. In high school we'll run 60 percent to * * * 65 percent of our students. At the elementary level you're running with the whole program I'd say pretty close to 75 percent of your students, so you're getting large numbers of kids.

Q. Mr. Aultman, in your 12 years in the school district have you had the opportunity to observe the patterns of drug and alcohol abuse in the district?

A. Yes, I have. Alcohol has been around high schools for a long, long time. Between 1980 and about 1986, '87 there was the typical—I was raised in Vernonia High School, a typical small high school with some minor problems, disciplinary referrals would amount to about 40 to 50 a year, no real strong discipline problems. We would have visitors come to our school and compliment how well our kids were doing and how well behaved they were in sitting in the classrooms and studying. And it [21] almost was like a few kids moved in the community and it seemed like in a period of the year I was gone and the next two years, the '87, '88 and '88 to '89 school year there was a real upswing in drug use by our students in the Vernonia High School.

I can equate this to seeing and having teachers come to me and having students being talked—talking in their classroom about drug use, about abuse, about parties. Kids were blatantly oftentimes talking about that they used drugs and there was nothing school officials could do. And what was really concerning us was a lot of these, it was the first. Back at the beginning when I was there in '84 and '85 they had a fringe group that used drugs. Very, very small. And they weren't really looked up to very much. They were kind of looked down upon. But in '86 and '87, '88, '89 were that shift that I saw many of our students, including our athletes, were starting to get involved in drug usage and it was mushrooming.

I had a coach come to me in 1988 and said, "I'm concerned about our football players because I'm hearing reports even from some of them that there's a possibility of amphetamines being used before they play football." That's shocking. [22] And that coupled with the amount of suspensions, in 1988-89 there were between 100 to 110 referrals that we had that year. There were kids acting out, they were shouting in the halls, they were banging heads together, they were writing essays in classes and coming to us that really scared our staff because we had prided ourselves on really helping our

kids. We're concerned and we care about them. We were scared. We were really concerned about these kids.

I had parents call me concerned about the drug use. I had—the school board was concerned. The community was concerned that when we approached the city council for two weeks they brought in a policeman from Portland that they hired for two weeks to try to patrol our areas across from the school to try and keep kids from using drugs. That lasted about two weeks, then he had to go. But we were facing some epidemic proportions of drug usage.

I feel and I think the evidence was there, that the community was saying it, there were students that were telling us, the staff was telling us and as the principal where we pride ourselves on a school that didn't have this. I was [23] very scared.

Q. Mr. Aultman, what were those areas where the police officers patrolled?

A. Well, across the street there was a place called Mario's Coke Shack, right across from the high school. Also there was a mini-mart over there, then down the road there's a bridge that the kids could go under. And this person the city council hired patrolled those areas to try to stop kids from using drugs.

Q. Mr. Aultman, what were the drugs in your opinion that were being used prevalently during that period?

MR. CHRIST: Objection, Judge. I don't think he's competent to testify—

THE COURT: If he knows. I want it from his own personal observations.

THE WITNESS: Go ahead.

MR. MULLMAN: Your Honor—

THE COURT: If you're going from your own knowledge, then I'll allow you to testify, if you have knowledge yourself of what drugs were being used.

THE WITNESS: Yeah, I do.

THE COURT: All right. Go ahead.

[24] THE WITNESS: The students were in my office and they have told me and—marijuana because they had

pipes and I confiscated them from students and they admitted it. Alcohol, and there was a report of the—that I have from the coach and the students on the amphetamines.

THE COURT: All right. These will be—I understand. These are hearsay reports. I want you to go into this a little more on how he gets these reports and why he gets them.

Q. (BY MR. POWELL) Mr. Aultman, can you describe how the reports of amphetamine use came to your attention?

A. Four football players talked to the football coach and admitted that they have used drugs, and amphetamines were those drugs, and the coach told me the kids never come forward and said, you know, they did. And marijuana, I did have that down to where I have the pipe and kids admitted it.

MR. CHRIST: Your Honor, I would move—

THE COURT: I realize that you're having continuing objection to this. I'm watching it very closely. Whether or not I consider this is an issue I'll confront.

What I have to look at is the perception [25] of what is going on. Now, I'm not going to rely on hearsay. What I want the questioning to address is whether or not there is a system set up within the school whereby reporting is to be made to the principal and that these reports came through that system. That's what I want to.

MR. CHRIST: I just want to preserve—

THE COURT: You have it preserved.

MR. CHRIST: Thank you, Your Honor.

THE COURT: Yes.

Q. (BY MR. POWELL) Mr. Aultman, in the Vernonia School District was there a system for reporting drug incidents or suspected behaviors?

A. Yes, there was. Because I was going to try and address this issue—well, I will try. Yes, we have—we train our staff in impact training to look for these behaviors that oftentimes were indicative of drug and alcohol use so we could work through the training sessions that

our staff had had to try and help students identify, deal with parents on drug and alcohol problems and the staff would write out these various incidences, they would write out what happened and they would tell me about it.

So there was a system set up to—to— [26] to report any type of observable behavior. And we trained all of our entire staff during those years to be on the alert and look for this and how we could stop it because we didn't sit still and idly watch this go on. We tried many things.

Q. Mr. Aultman, did you make any other attempts to determine or figure out how prevalent the drug use was in the district?

A. Other than some surveys done by some staff members, which they related back to me their results, and just from some of the kids, especially in the '88-89 school year admitting that there was nothing we could do to stop them. That's—

Q. And were they admitting drug use?

A. Yes. Openly.

Q. And in your opinion as part of this increase in illegal drug use, were the interscholastic athletes also a part of that increase?

A. Well, that was the thing that really concerned us. Like I said, 60 percent of the kids participate in sports and when we started the—when the drug usage really started and began, during the years of '87 to '89 it escalated to where we had a large number of athletes who were [27] using and openly admitting to many types to people, including the coach and a couple to myself that they used drugs, but they basically said there's nothing you can do about it. We did try and do things but that's not a question.

Q. So at this point was the district concerned about the use among athletes?

A. Oh, yes. Yes. Definitely. Because when that student had told the coach about using amphetamines, I immediately thought in my head what if this kid gets hurt and they take him to the hospital and it is true

that he's on amphetamines and we've been told and warned, are we liable? I was—that really concerned me when I heard of the amphetamine. Because like I said, we've had a lot of training.

I've gone through this drug thing, you know, about marijuana, amphetamines, the entire works, and so we were very concerned about the safety and health and welfare of our students, yes. And the athletes, like I said, 60 percent participate. That's a large number. And we saw more and more of those students actively promoting and actively demonstrating to us that they were out of control.

[28] Q. What efforts did the district make to provide education or motivation to the students to stop the drug problem?

A. We believe in education, number one. We not only taught units on drug and alcohol in our classrooms, we brought in guest speakers over a two-year period. I spent over—between four to \$5,000 in bringing in speakers to talk to our young people about the effects of drugs, Dutch Savage Associates, Theresa Lush, we brought in Javonne Wilson, or Javonne White, a comedian who did a video called "Waking Up To Drugs." Cost us over eight or \$900, to bring this man up from L.A. to try and help us.

Brought in drug dogs to try to sniff lockers. We—we set up with our staff and brought experts out to work with every staff member on how to identify and how to deal with the drug-related problem. How we could help our young people, because that was the bottom line. We just saw some kids being very much at risk. And everything we tried did not seem to work.

It continued. We would have kids get suspended. Like I say, referrals were very, very high. There was two or three expulsions. We'd try [29] everything in our power from punitive discipline to having our staff work with kids, to bringing in drug dogs and authorities and speakers and like I said, we spent a lot of money trying every resource at our command to stop the problem.

Q. Can you recall any specific reactions to some of those speakers or some of those programs?

A. Theresa Lush, a psychologist came in and talked about her son who was addicted, how she tried to get him cleaned up but then he went back. And all of our student body—we worked the system around so every kid could hear every speaker whenever we had it. During one year we spent a whole month on drug awareness to our kids. And we spent the last big week by bringing in as many—there was things going on all during the month. And we brought in all these speakers. One of them, like I said, was Theresa Lush. Her son Bill couldn't get off drugs. So she told how she had to let him go. There wasn't hardly a dry eye in our students. It affected them.

Dutch Savage talked about how he had used and abused drugs and how his mind was scrambled. And he had an assembly in front of all the students and went to all the individual class rooms. [30] Javonne White, like I said, talked to the entire group and then split out.

We had a Seahawk player, I can't remember his name right now, one of the well-known guys, but we had a Seahawk player come in and speak.

We ran the gauntlet of trying to educate. And after Dutch Savage got through I heard kids saying, "Well, Dutch Savage, he was addicted. Look now, he's out selling the program. He came out of it and we can too." That was the mentality that we got from some of our kids after our speakers.

And the major thing was it wasn't going to happen to them. They could not see that.

Q. How did you decide to explore drug testing by urinalysis?

A. Well, in '89, the spring, our school, because of the behavior of our students, the referrals, the suspensions, the parent conferences, all the things that were happening, the staff got together and we were trying to help our young people. It was going to boil down to some tremendous alternative or massive expulsion. We were going to

have to expel a large number of students. And our staff did not like that idea.

If you expel students basically they're [31] out on the streets and nothing happens. They're back in six months after the semester, and you really don't solve anything. That's when in the spring it came to our attention through *The Oregonian*, a supplement in the Sunday edition called Parade, there was an article entitled "The Town Sends A Note To Drugs." It's about a three-page article, about a town, a community in Texas called Hawkins who had instituted a mandatory drug testing program for extra curricular activities.

I had previously been approached in 1988 by a president of the Booster Club advocating drug testing. This is even before the Hawkins story broke. Because there were some things happening in the federal courts that were relevant to things about drug testing. This Booster Club person wanted to know if we could do it. I said no, I would not do it until I knew there was no other alternative and I had the community support. I was not going to step out.

* * * *

[36] Q. Okay. Mr. Aultman, in designing the policy what was your purpose?

A. That's where the rationale came in. The purpose is threefold. One, safety. That scared me as a principal when I heard of a possibility of students playing with amphetamines because that's where Len Bias, all the things we'd read about this really, really concerned us.

We wanted a policy that was not punitive. We're not—we did not want to go out and get kids. These are not bad kids that we're talking about that were on drugs and that were abusing. These are good kids that were out of control with what was being taken. Our concern is with them too. So we did not want a policy, a policy that was punitive and was kick them out, get them out of here and be done with it, because we would not have had to do this program if we just wanted to expel kids.

So we wanted a prevention program and [37] intervention program built into our drug testing system where there was buy-back, where we could get help if needed. We really wanted to do it from a non-punitive stance.

* * * *

[41] Q. Are the boys clothed during this procedure?

A. Yes, they're totally clothed.

Q. What can you see of the student during this process.

A. Nothing.

Q. Are the student's genitals exposed at any point during this procedure?

A. Never, ever. And the shower rooms here, I go through here all the time and the kids are in the shower. But here on our drug testing, no.

Q. Mr. Aultman, is that shower area a communal shower?

A. Yes, it's open right here. Communal. Anybody walking through this door or coming through this door here can see undress.

Q. And this locker room is where—is that where grade school boys dress down for athletics?

A. Yes.

Q. And, Mr. Aultman, is the toilet enclosed by a stall?

A. The stall is right—there's a wall comes out here, but this is open. I should not have that in there because it's an open area.

[42] Q. So there's no door on the stall surrounding the toilet?

A. No. No.

MR. POWELL: I'd like to have this diagram marked as Defendant's Exhibit 110.

[Defendant's Exhibit 110 is a diagram of the grade school boy's locker room]

THE COURT: It will be marked as 110.

MR. POWELL: Your Honor, I'd like to offer that into evidence.

MR. CHRIST: No Objection, Your Honor.

THE COURT: It will be received.

(Defendant's Exhibit 110 received.)

Q. (BY MR. POWELL) Mr. Aultman, who has access to the results of the drug test?

A. Superintendent, principal and vice principal of the high school. And the athletic director of the high school and grade school.

Q. Mr. Aultman, can you describe briefly where are the girls samples collected?

A. In the girls' locker room. At the elementary school Mrs. Peterson, our athletic director, does the paperwork right there while the student is going to the restroom and in there the doors are closed. Students do go into a closed door. Because on the girls in our school there are doors at the elementary level. At the boys just on [43] the one there is not.

Q. So the girls give a sample within an enclosed stall?

A. Yes.

* * * *

[45] CROSS-EXAMINATION

BY MR. CHRIST:

Q. Mr. Aultman, are you aware that there's been a nationwide and statewide decline in drug use by high school students in the last few years?

A. I think that's on an average and yes, I'm aware of that.

Q. Okay. So you have no reason to conclude that the drug policy rather than just the general trend is responsible for the decline in apparent drug use, isn't that correct?

A. I have a different opinion on that. I was there. I saw the differences and I believe there was a difference.

Q. Your policy as originally enacted wasn't limited to sports, was it?

A. In our beginning when we looked at Hawkins and talked of Hawkins, the model was much like theirs, which was other areas, but then we [46] decided that that was not going to be the right way to go.

Q. My question was the policy was originally enacted beyond sports?

A. Correct.

Q. To all extracurricular?

A. Correct.

Q. What are some of your extracurricular activities other than?

A. We have band, we have drama. Those are two. Leadership class officers, class officers.

Q. Did you have any injuries in the course of those activities?

MR. POWELL: I'd like to make an objection, Your Honor. What's at issue is the present policy to test interscholastic athletes.

THE COURT: Overruled. Go ahead.

Q. (BY MR. CHRIST) At some point in time you changed the policy to limit it to just sports; is that correct?

A. Right.

Q. Okay. Why?

A. Because after the research we're talking about advanced previously we determined that it was not legal if we carried any farther with those [47] areas because of what we had seen, so we knew that in the federal courts in Indiana it had been upheld for the athletics.

Q. So the justification for the current policy is the concern for its legality? Is that correct?

A. Well, only from the standpoint that we had to have that we felt to get by with our drug problem we had in our school, sir.

Q. How are students selected for testing?

A. The very first of the season they're all tested. Okay, like in the fall sports season, all the students are tested. Thereafter, they are randomly picked. Ten percent of the total number that are out for sports are drawn

at random, and we decided to have the students buy in by having them be the ones that would be tested. They can't see who they're picking as they pick it out but we—

Q. How often do you draw names?

A. Every week.

Q. Do you draw during the school day?

A. Yes.

Q. How many students then do you select?

A. Example, if you have 30 people out we would usually do about three.

[48] Q. Do you do the testing at the same time?

A. As soon thereafter as possible that day, yes.

Q. So you would draw a student from the classroom to go test them?

A. Sometimes in the classroom it can be, if that's when they can go. It takes about five minutes, but we do it also sometimes at noon, after school, before school, breaks, yes, sir.

Q. You take the students to the locker room?

A. Yes.

Q. One-by-one?

A. Yes. On the random.

Q. On the Random?

A. Yes.

Q. And you're present while the student gives the urine test for the boys?

A. Yes, I'm in the room.

Q. Are you watching them while they urinate?

A. It varies. Most of the time if I find something to work on, because the proximity, the way the urinals are, there's no—there's no water to be tampered with, so I may or may not. It's not a necessary thing that I have to do. I don't train myself to watch the kids.

[49] Q. You're close enough to watch?

A. Yes.

Q. Okay. And you're listening as well?

A. From where I am on the bench I really couldn't hear. I don't recollect ever trying to hear them do they.

Q. You're close enough to hear?

A. Yes.

Q. Have you caught anyone cheating?

A. I have not caught anyone cheating, no.

Q. But you're there to prevent cheating, correct?

A. True.

Q. To that extent you're listening and watching the students doing it?

A. I can see what the students are doing, yes?

Q. What if the students can't urinate at that precise moment?

A. We let them go back to class and come to us when they can.

Q. I think you referred to the policy as non-punitive. What exactly do you mean by that?

A. When we first got Hawkins's program on the first offense that there was a positive test, [50] they suspended a kid for the remainder of that athletic season and did not allow them to participate.

We built into our policy that on the second—after their first test was positive we tested nearly for a second time immediately. If it was a double positive to bring the parents in, notify them we have a double positive and then there's two alternatives for the student. We tell the student, "Look, there's twice positive. You know, we're going to offer you these services which we have people with programs to help, intervention," and if they agree to that and if they'll be tested weekly to show they're trying to quit the drug, we will let them continue to participate.

No other program that I know of and have read about allows the students that opportunity to stay involved and that's what I mean by non-punitive. We're not threatening we're going to exclude you totally from the program or suspend you or any of that type of thing. And nothing happens to the students if they are positive, as far as academics and being excluded from school.

Q. For a first offense—and that's the [51] word you used, correct, the first time you flunk the test?

A. Yes.

Q. You give them a choice, they can either get kicked off the team or they can be forced to go to counseling or undertaking further testing. That's the choice, isn't it?

A. Yes.

Q. And they can't say "I don't want to be here?"

A. If they say they don't want to do it, then they're excluded.

Q. Okay. And you don't consider that punishment?

A. I believe extracurricular activity is not required, so no, I don't consider it—

Q. Don't you think that students who are kicked off the team or are made to go to counseling and made to take urine testing would consider themselves punished?

A. I can't answer that.

Q. Okay. For a second offense, you don't get any option, do you?

A. You still have the option that you can still do that, and within a couple seasons you [52] can—within the—depends when the season occurs, okay? It's the third offense that the student is totally off for the year. The second offense is very similar to the first offense, I believe. Because we're trying to give them some time.

THE WITNESS: Could I have some more water, please?

MR. CHRIST: While you're up could the witness be handed Defendant's Exhibit 104, please.

THE CLERK: (Handing)

[Defendant's Exhibit 104 is the Vernonia School District's Student Athlete Drug Policy]

Q. (BY MR. CHRIST) Would you look at the top of the second page of that exhibit—

A. Uh-huh.

Q. —Where it says "Second Offense." Does that refresh your recollection about whether a student is automatically kicked off a team for a second time?

A. I need a clarification. You're saying that on the second offense of this policy that the student is excluded from all athletics for the year. Is that what you're saying, sir?

Q. Listen to my question. For a second offense a student is suspended for participating in athletics for the remainder of the current season in [53] the next athletic season?

A. True.

Q. There's no option to say, "I'll continue in a program and go to counseling," is there? You don't get the choices you get for the first offense, do you?

A. Yes, you do. It's just not spelled out there.

Q. It's not spelled out in the policy?

A. Right. Exactly. We have a policy here the student's suspended from participating in athletics for the remainder of the current season and the next season for which year he or she is eligible.

Q. So are you suggesting the policy is inaccurate?

A. No, it's not inaccurate. The policy just does not refer back to the participation in the assistance program of the weekly drug test, but is understood that it is only on the third offense that there's a total removal for the entire year.

Q. Okay. Is that punishment?

A. Again, that's—that's an opinion. To me there's been an opportunity. It would depend on the person.

[54] Q. You mentioned use of drug dogs.

A. Uh-huh.

Q. And what did you do with the dogs?

A. This is an attempt many schools are trying to—at that time Vernonia is not the only school that is going through this, the throes of drug problems. There are other school districts, Scappoose and others in Columbia County, and there was a use of a drug dog unit in Columbia County which is accessible to the school.

There were several parents, like I said, who were concerned about the problem of drugs in school. That was one of the things they advised us to do to, use a drug dog to see if there were drugs in school.

Q. They went around with dogs—

A. Yes, and sniffed lockers.

Q. Did you find any drugs that way?

A. Yes. But unfortunately we messed it up.

Q. How'd you mess it up?

A. The dogs stopped at a locker. We got the student out of class to open the locker for us and we searched through it. This was right before lunch. Fourth period. In the locker was a transistor radio. I picked the radio up, not [55] thinking to go through that device. I could not find any drugs. So we shut it back up and told the kid we apologized to him, that it was something wrong with the dog.

I had some—two students immediately come up to me when the bell rang for lunch. They said, "Mr. Aultman, check the locker, it's in where the batteries are normally kept. That's where the marijuana is stashed." I immediately went to the locker and the transistor radio was gone.

Q. Any other drugs found through use of dogs?

A. No.

Q. How many times did the dog come to the school?

A. One.

Q. Why didn't you continue that program?

A. We felt it wasn't effective. It wasn't effective.

Q. After trying it one day?

A. Yes.

Q. Have you tried voluntary drug testing?

A. No, we haven't because in the school that we have, Churchill and other schools we studied at this time found to be very ineffective in our [56] opinion.

Q. But you didn't try it?

A. No.

Q. Did you try drug testing only those students that you suspected of taking drugs?

A. You run a real fine line of reasonable suspicion, probable cause, and we—we really felt that by trying to design a policy that combined all of our kids and, like I said, no, we did not.

Q. You have a general search and seizure policy at the school. Don't you?

A. Yes.

Q. And that's expressed in the student handbook, isn't it?

A. Yes.

Q. Okay. And that permits you to test only on the basis—or to search a student's person only on the basis of reasonable suspicion; is that correct?

A. That's correct.

Q. So your mandatory drug testing policy is inconsistent with that policy, isn't it?

A. That has not been decided in Oregon yet. That's what we're here for today.

Q. I don't want to know about the legality [57] of the policy, I just want to know that it's inconsistent with your general search and seizure policy, isn't it?

A. In my opinion, no.

Q. Well, you have no reason to suspect James of taking drugs, do you?

A. No. No, I do not.

Q. Nevertheless you insist that he take tests if he want to play sports?

A. Yes.

Q. Have you ever seen any students taking drugs? Ever caught anyone in the act?

A. No.

Q. So your knowledge about any drug use is based on hearsay reports from others, isn't it?

A. And what I know about kids, yes, it is, and my own knowledge. I perceive the training of drug characteristics. I draw conclusions based on my knowledge and training.

Q. I think you mentioned four wrestlers who went to the coast and said—admitted they'd taken drugs?

A. Yes.

Q. Were they wrestlers or football players?

A. They did both.

[58] Q. And then they passed it on to you, that information?

A. Yes, the coach did.

Q. And that's the basis for your conclusion that you've got a drug problem?

A. No. The behavior—no, I—I can't agree with that.

Q. I think you said that athletes are generally looked up to in the community?

A. Yes, they are.

Q. All of them?

A. To my knowledge.

Q. 70 percent of students participate?

A. 60 percent.

Q. At the grade school level?

A. Oh, at the grade school. 70 percent, yes.

MR. CHRIST: That's all I have Your Honor.

THE COURT: Redirect.

MR. POWELL: Nothing Your Honor.

(Recess)

* * * *

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

(Title Omitted in Printing)

PARTIAL TRANSCRIPT OF CROSS-EXAMINATION
OF ELLIS MASON,
Superintendent of Vernonia School District

* * * *

[64] Q. Since you implemented the drug testing policy how many students have flunked the test?

MR. POWELL: Objection. Outside the scope.

THE COURT: Overruled. I'm going to allow the question. Go ahead.

Q. (BY MR. CHRIST) How many students have flunked?

A. Two or three, I believe.

Q. And that's in what, three years, policy's been in force?

A. That's correct.

MR. CHRIST: Nothing else. Thank you.

THE COURT: Redirect.

MR. POWELL: (Shakes head)

THE COURT: Thank you. You may step down.

* * * *

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

(Title Omitted in Printing)

PARTIAL TRANSCRIPT OF DIRECT-
AND CROSS EXAMINATION OF MARCIA KING,
Vernonia School District Teacher and Athletic Director

* * * *

[66] DIRECT EXAMINATION

* * * *

Q. You indicated you grew up in Vernonia?

A. Yes, I did.

Q. And your current position with the district?

A. I'm a teacher and athletic director and leadership of student council advisor.

Q. And over your 18 years in the district did you have the opportunity to observe the frequency of injury to extracurricular athletes?

A. Yes, I have. Both as a coach and as athletic director.

Q. Did you notice any trends in the late 1980's, let's say 1985, 1989 as far as injuries in the district?

A. Yes. There—the frequency and also the severity of type of injury seemed to be one of escalating.

Q. And over your 18 years in the district did you have the opportunity to observe any increase in students' use of illegal drugs or alcohol?

A. Yes. Some of that was hearsay. By [67] listening to students' conversations and also my observation of students, small groups of students across the street at the high school at a small restaurant, La Mario Coke Shop which is directly across the street from the school office, observation of them passing joints back and forth among

themselves during the noon hour and sometimes before school.

Q. Did you have the opportunity to observe over those 18 years whether there was any noticeable trend in the use of illegal drugs?

A. Again, observation and—of students' behaviors, training and stuff, again this is my opinion and in the school, within the classroom, within the halls, during sporting events and the blatancy on which students would talk about their drug use and in the classroom, in the hall, there was a hostility, a power struggle among students and teachers.

In the classroom it was very difficult to teach because we dealt with this anger and this hostility. This is indicative of drug use. Also other things too can play a role, but primarily the drug use appeared to be the forerunner because of the students' conversations.

[68] Q. Are you familiar with the term "The Big Elk"?

A. Yes.

Q. Can you tell the Court about where that term came from and what it denotes?

A. I'm not really sure where it came from, but it was a group of students, athletes and actually that's about all I know about it.

Q. Were they—from your observation were they involved in use of illegal drugs?

A. Yes.

Q. This again is in the time frame of the late 1980's?

A. Yes.

Q. Did you ever personally observe students under the influence?

A. Yes, I did. I had a student arrive in my classroom after a lunch break and I had to escort him to the office. He was clearly obviously inebriated and was sent home from school.

Q. Back to the Big Elk. Were there some unusual behaviors of those individual students who were student athletes who were identified as members of the Big Elk?

A. There was a thing with each other in the [69] hallway and there were the loud bugling, the loud conversations, down the hall. It was more or less a signaling to each other and a camaraderie.

Q. Was that different than it had been, say, in the early 1980's, had you seen that type of behavior before?

A. No, I hadn't.

Q. What's a disciplinary referral?

A. A disciplinary referral is a form which the teacher fills out which states the behavior of a student or unacceptable behavior of a student in a classroom and a hall, even on the school premises, and describes that behavior. And then it is then also referred to students who sign a rebuttal or a comment in regard to the discipline and then it's sent on to the office.

Q. Is this a standard practice within the district?

A. Yes, it is.

Q. Did you notice any change from the early 1980's to late 1980's and the number of disciplinary referrals?

A. I can speak for myself, yes. In my own classroom I used to pride myself on the fact that I could handle my own discipline, and in 1985 a group [70] of students entered my classroom and I had a number of these students that were in the—this little group, this Big Elk group, and it came to a point where I had to send referrals to the office and my referrals alone increased in number on a weekly, sometimes on a daily basis for a period of time until some of those students were released from class.

Q. Now, since adoption of the drug policy have you noticed any change in the number of disciplinary referrals from your classroom only?

A. Yes. Terribly. Again back down to my own problems of having to refer to the office.

Q. Is there in fact a decrease?

A. Decrease? Considerably, yes. In fact, almost zero.

Q. From your observation was drug and alcohol use prevalent among students participating in interscholastic athletics in the late 1980's?

A. Again, observation and the hearsay of students who were talking about the use of amphetamines, even diet pills if they could get them from their mothers' cabinets, conversations within my classroom.

Q. And you dealt primarily with the female [71] athletes?

A. Yes.

Q. And were the female athletes also talking about drug use as well as the male athletes?

A. Yes, they were.

* * * *

[75] Q. All right. Would you tell us how a student comes in to be tested?

A. I bring them into my office area here, set them down at a chair next to me at the desk, go through the process of paperwork. They do—they then enter into this restroom area, which is right beside my shoulder. There is a toilet area and a shower area here.

Q. That restroom has a door on it?

A. Yes, it does. A closed door. It does have a grate—an air type grate there to that.

Q. So the female student enters into the restroom and produces the urine sample?

A. Right, and brings it back out to me and I finish up the process and then they leave.

Q. Is the female student clothed?

A. Yes, they are.

Q. Do you directly observe the urination?

A. No, I don't.

Q. You're outside the door so you could hear the natural sound of urination?

A. Yes.

MR. MULLMAN: Thank you. Would you mark that Exhibit 111.

[Defendant's Exhibit 111 is a diagram of the high school girl's locker room]

[76] THE CLERK: 111?

MR. MULLMAN: Your Honor, we would offer 111.

MR. CHRIST: No objection, Your Honor.

THE COURT: Received.

(Defendant's Exhibit 111 received.)

Q. (BY MR. MULLMAN) The locker room has communal shower?

A. Yes.

Q. That is a communal dress area as well?

A. Yes, it is.

Q. Is this the area that's normally used by female students interscholastic athletes in dressing down for their activities?

A. Yes, it is.

Q. Since the adoption of the drug policy have you noted any trends in the frequency of injuries to interscholastic female athletes?

A. I have not divided it between female or male athletes, but as athletic director there has been a decrease in the number of accidents that come through my office, yes.

Q. And those accident reports normally come to your office; is that correct?

A. In formal conditions, yes. Sometimes [77] bypass to the main office, but I am aware of accidents.

MR. MULLMAN: Your witness.

CROSS-EXAMINATION

BY MR. CHRIST:

Q. What girls sports are offered by the district?

A. In the fall we have volleyball and cross country. I'm speaking for the high school level. And in the winter sports we have girls' basketball and in the spring sports we have track or golf.

Q. Have you had any injuries in the golf program?

A. Not recently, no. But in the past years we have during the late eighties.

Q. What kind of injuries?

A. Hit with a golf ball. And also one person was accidentally struck with a club.

Q. What kind of injuries do you have in the track program?

A. Muscle-type injuries, pulled muscles, improper warm-up. But you also have the potential for javelin or discus-type injuries.

[78] Q. I don't want to know about the potential, I want to know what injuries—

A. What we normally—primarily muscular injuries.

Q. And this is the same type of injuries in the cross country program, I take it?

A. Yes.

Q. And in basketball?

A. Muscular, but we also have knee injuries, we have shoulder injuries.

Q. Okay. You just finished the basketball season, did you?

A. Yes, we did.

Q. Did you have any injuries during that season?

A. Yes, we did.

Q. What kind?

A. Knee, ankle.

Q. What knee injuries?

A. Types of torn ligaments or cartilage where they need surgery.

Q. During the testing did I understand you to say there's a grate on the door to the restroom?

A. Yes, there is.

* * * *

[80] Q. Have you ever seen students take drugs and then play sports?

A. No. Not immediately play the sport, no.

Q. Have you ever seen a student take drugs?

A. Yes, I have.

Q. How many times?

A. There were numerous times with observation from the school office to the restaurant across the street of the smoking of marijuana.

* * * *

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

(Title Omitted in Printing)

**PARTIAL TRANSCRIPT OF DIRECT-
AND CROSS-EXAMINATION OF KATHLEEN SEVIG,
Vernonia High School Teacher**

* * * *

[85] **DIRECT EXAMINATION**

* * * *

Q. How are you currently employed?

[86] A. I'm a language arts teacher at Vernonia High School.

Q. How long have you been so employed?

A. 13 years.

Q. And what are your current classes that you teach?

A. I teach English, World Literature, survey of lit and comp, which are required courses for all students. I teach Speech and I'm a drama director.

Q. Are you involved in any way with scholastic athletes at Vernonia?

A. Only in the sense that I teach student athletes.

Q. You have a child that's involved?

A. My son is a junior in high school in Vernonia and he is involved in student athletics.

Q. But you are not a coach or anything like that?

A. I am not a coach.

Q. Over the years at the district did you observe any trends in students using alcohol and illegal drugs?

A. Yes.

Q. And over that 13 years would you tell the court what you did, in fact, observe?

[87] A. When I first came to Vernonia in I believe 1979, the first year that I taught I followed a teacher who had been there for 30 years and I had a few discipline problems just because students were testing me. But after that for the next ten years I prided myself on and I've always provided myself, I've taught for 23 years, on my ability to handle the discipline in my classroom.

One of the goals of my teaching is to establish a positive climate of trust between myself and my students, and I have been able to do that. However, in the late eighties I would say beginning the years '85 through '89 I noticed a tremendous difference in the kind of behavior problems I was having to deal with. Completely different than I had dealt with the previous years.

Q. What kind of behavior problems were those?

A. I could characterize them as students who were much more hostile, who wanted to dominate the classroom, whose behavior was very erratic and I think the other word I would use is very, very gross and inappropriate. Much different than I had in the previous 16 years. Something that I noticed considerably and was unable to deal with myself as [88] I have been able to deal in the past.

Q. And in that period '85 on did you notice there was a significant increase in drug talk?

A. If I could, I could give a specific example. I am trained in writing using the Oregon writing project model and that model is based on using personal experience as a beginning point for writing. And my students using that model, often I've had students write about things which are—well, they all write about things that are incredibly dear and important to them, and I've had to deal with things like sexual abuse and drug abuse in the home.

During those three years I began getting essays from students with the theme of—I remember one essay in particular, the name of it was "Party Till We Puke," and it was written by a student who wrote an essay about the goings on of he and his friends, their drug use, their

parties and he glorified it in the essay. And that was only one example that I particularly remember, but I got several essays on that theme and—

Q. "That theme" being drug use?

A. Drug use. Drug use, yes. Talking about drug use. And these were essays that they handed [89] in to me that they knew I was going to read and that I was going to grade.

Q. And did you notice any behavioral changes in that late eighties period?

A. I noticed tremendous behavioral changes.

Q. What kind of things did you see?

A. As I said before, I noticed behaviors that were extremely erratic and gross. I had a fifth period class and—

Q. Fifth period after lunch?

A. Yes. Directly after lunch. And students would come back from that class and it was extremely difficult for me to control that class in those particular years.

I remember one instance I think there were 23 or 24 students in the room and a student sat at the back singing "Jesus Loves Me" at the top of his voice.

Q. That was rather unusual?

A. I've never experienced anything like that.

Q. Did you go talk to the student?

A. I talked to the student. It was kind of wild, his behavior, kind of dancing around in the back of the room, and I said—tried to talk to [90] him and he said, "well, I'm just high on life," and tried to calm him down. There was no way. So I wrote a disciplinary referral and—to the office and he was taken from my class, but I don't remember if he was suspended for two days. I can't remember. But I did get him back in class after that.

Q. Did you notice any other types of odd behavior of students in class, for instance, writing inappropriate language?

A. Yes. There was a lot of talk, as I said, about the "Party Till You Puke" thing, the drugs. They didn't mean to overhear it, but it just went on and I did hear it.

There was more use of profanity. I remember one specific incident, and this was in a fifth period class also, where a student came into the classroom, a class of boys and girls, and marched into the classroom and sat down at his desk and looked over at a girl next to him and at the top of his lungs basically in front of all my students shouted, "suck my dick." And this kind of behavior has never happened to me before in my teaching. And these kinds of comments—

Q. And did you talk to that particular [91] student about the comment?

A. Absolutely. I told him to pick up his books and I called the office and there was a disciplinary referral. I believe he was suspended from my class for three days. But he also came back to my class.

Q. Have you ever heard a term "drug cartel" referred to in the school?

A. Yes.

Q. Can you tell the court what that referred to?

A. There's a group of students who bragged about their drug use in their essays and I had all these students in my class. They were student athletes, who talked about how cruel it was to use drugs and alcohol, who in a sense intimidated other students. They would walk down the hall and I would stand right outside my classroom and they would shout and bang their heads into the lockers as hard as they could, they would butt heads with each other. They would be real loud.

Sometimes in the classroom I would have—trying to calm them down. There was such a hostile atmosphere toward me that I just had a really difficult time. It bothered me terribly [92] because I thought what a difference for 15 years I was in control of my classroom, I did not have these kinds of problems. Why is this happening? Why can't I deal with it? And I had to resort increasingly to having them removed from my classroom because I couldn't deal with them in the classroom.

Q. Did you personally participate in any educational efforts to remove drug education prior to the time the district adopted the drug policy?

A. Yes. I'm a drama teacher and during—I think it was—I'm unclear of the years here. I think it was either '87-88 or '88-89. I'm sorry, I can't remember the exact date.

Q. That's all right.

A. But it was during the time that we had the drug prevention month. And I had a drama class and there was a play called "The Attie" that Hillsboro High School had put on and it portrayed the lives of 11 or 12 teenage addicts and what happened to them. And the drama class discussed it and said they would really like to put on this performance as part of the drug education awareness.

And so we practiced it and we performed [93] it five or six times for the high school in small groups and we also performed it at the 7th and 8th grade level.

Q. And why did you select that particular day?

A. It was a joint decision by me and my students. They had heard of the play. I had one student who was student director and we discussed it and they felt that they wanted to have some kind of involvement on their level of bringing the consequences of the drug use to their peers.

There were other speakers coming in from the outside and they wanted to participate on a personal level in letting their friends and their peers know what drug use could do.

Q. And from your personal observation were these efforts effective in curbing the drug abuse in the school?

A. The discipline problems that I was having in my classroom didn't change after that month. There was no change. I remember we had a series of four days and there was something that hit the students every day, and the Friday after those—that was over, five, I don't know the exact number, four or five student athletes skipped school and [94] went to a parent's house and used drugs

and alcohol and they were—the police raided that. That was during school. So that happened immediately after this whole months of education.

Q. Is it fair to say it didn't appear effective in your opinion?

A. I didn't see that it was effective.

Q. Let's turn to the current school year, 1991-'92. Have you noticed any difference in the disciplinary referrals from your class to the principal?

A. I've had no disciplinary referrals at all.

Q. After the adoption of the policy did you notice any difference in disciplinary referrals between that and the current year?

A. Yes, I did. Last year I think I had two disciplinary referrals and the first year that the drug testing was in effect, I can't remember exactly, but I would say no. Maybe one to three, something like that.

Q. Has the excessive drug talk stopped in your class?

A. I've not heard any drug talk in my class this year. Maybe a bit at the beginning of last [95] year. Nothing this year.

Q. How about the classrooms, any difference between when the policy was adopted in this behavior?

A. I don't detect the hostility. I'm able to establish a rapport with my students, have the kind of class atmosphere where they respect each other and me, and I'm able to teach them the kind of environment that I was able to teach in, as I said, those first 15 or so years before this late eighties and I thought everything—I could not understand what was happening. I—I didn't—I didn't change my teaching style. It was so severe in the year of '88-89 that I was seriously considering not remaining in teaching because I felt that I could not reach my students.

I could add that my teaching had been successful. I was a master teacher. I received merit pay several times

from the district. But I felt that I could not continue because I could not reach a great many of my students.

MR. MULLMAN: Nothing further.

* * * *

[97] CROSS-EXAMINATION

* * * *

Q. So again you could be seeing the benefit now of all the work you did back then?

A. I can't—I suppose that's possible.

Q. Really you have no reason—I mean, you can't say for certain what is the cause of the current situation?

A. My observation was that the behavior problems that I had were severe during those two years and after they did not change after the education, they changed drastically after drug testing was implemented.

Q. You talked about some essays that the students wrote that talked about drug use apparently.

A. Yes.

Q. Do you have any—you don't know for sure whether any of those essays are true, do you?

THE COURT: Any of those what?

MR. CHRIST: If those essays were true.

THE COURT: Oh, oh, okay.

THE WITNESS: Only in that the students told me they were true.

Q. (BY MR. CHRIST) These students, was there only one?

[98] A. No.

Q. How many students are you talking about?

A. Probably I would guess—this is an estimated guess: Eight or nine.

Q. How many students have you taught since 1989? Just an estimate.

A. Probably have about 90 students per year.

Q. The drug cartel, how many students were involved in that as far as you could tell?

A. I would identify the leaders of that group, the role models, probably seven to ten.

Q. Did you ever actually ever see any of them taking drugs or just talking about it?

A. I never observed them taking drugs.

MR. CHRIST: That's it, Your Honor.

MR. MULLMAN: Nothing further, Your Honor.

THE COURT: You may step down.

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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

(Title Omitted in Printing)

**PARTIAL TRANSCRIPT OF DIRECT-
AND CROSS-EXAMINATION OF RONALD SVENSON,
Vernonia High School Teacher, Wrestling Coach
and Former Vernonia High School Football Coach**

* * * *

[104] DIRECT EXAMINATION

* * * *

Q. Now over your 11 years with the district as a coach and as a teacher, have you had the opportunity to observe any patterns of students use of illegal drugs and alcohol?

A. Yes.

Q. Would you tell us what you've observed?

A. When I came to Vernonia in 1981 I was really impressed with the spirit, the lack of drug use, having moved from an area that was—drug use was rampant in Southern Oregon. The—over that began to erode. Beginning in about '85 you would hear isolated rumors about kids on the teams doing drugs.

It—when I was an assistant coach the head coach was called in and I believe it was in the football season of '85 and apprised of the fact that parents called and said that some of their sons had—that other kids on the team had done drugs on a road trip. That was the first time that [105] we had really been confronted.

After that we began to see—maybe opened our eyes and so we began to look, and we began to see behaviors that as we became better trained and read materials, you

know, appeared to us to be not a normal behavior to the head coach and I at that time.

Q. This is the football coach?

A. Yes.

Q. How did these things come to your attention?

A. As I said, the first instance was kids on the team had told their parents that some kids were doing drugs on a road trip at a restaurant when we were eating. After that we—you know, we heard things that kids would come and tell us that this is what they heard, you hear kids talking. In particular, after seasons were over when kids felt you no longer had the—the authority to remove them from the team, “oh, yeah, man, we were so blasted, you know,” that was ’86, ’87.

We had a couple instances, basketball team where kids were drinking on a bus coming back from a trip. They were disciplined. That was in what, I believe ’86. We had another instance in [106] track where students were—stole some beer at a Mini-Mart or something on a road trip. Were removed from the track team because of it. That—I believe that was in the spring of ’87.

We—it began to grow. Began to see more—more athletes across the street from the school in the little restaurant being involved in this thing, in this group. And then you’d hear them talk about it. You know, we had team dinners at our house and you couldn’t believe the same kids, you know, would come to your house and then be polite and then you’d see them four days later in school and their behavior would be radically different.

So it was kind of like an escalating thing. It just continued to seem to grow and you could almost weekly see more kids getting into this pool, so to speak.

* * * *

[110] Q. (By MR. MULLMAN) In 1989 did your wrestling team have an opportunity to travel to Madras, Oregon?

A. Yes, we did.

Q. What was the purpose of that trip?

A. To participate in a district 1A wrestling tournament that qualifies wreslers to go to the state tournament.

Q. Did any of your wrestlers get injured in that trip?

A. Yes.

Q. Tell us a little bit about the injury.

A. Well, we had a boy wrestling in the district finals who had qualified the year before to go to state. Only the top two kids in each weight class qualified to go to the state tournament. He was a very good wrestler, a tough athlete. Had been extremely competitive. He shot [111] a take-down in the first 15 seconds of the district finals. Went—instead of a normal reaction, went to his hands and knees and stayed on his hands and knees. His opponent cross-faced him, went to what we call a two-on-one arm bind, the kid didn’t react, he didn’t do anything. He just stayed in that position. The kid hammered across him and pulled his elbow up in this (demonstrating) manner. It’s a move that we’ve practiced probably close to a thousand times over the years that that boy participated.

He was severely injured. Had to go—he didn’t get to go to the state tournament because of that. He had to go to the doctor. He had several kinds of injuries in the sternum area with collar bones connected to the sternum, several months before he could function normally with his arms.

Q. And was there any reason to suspect that students who were participating were under the influence of some type of drug?

A. That night I took him—when we took him back to the motel, iced him up, okay, the next morning I got up, went down to his room to see how he was doing. It was 11 o’clock when we got back from the motel. When I walked into the room the [112] smell of marijuana enclosed you and I—there were no doubt somebody in the room was smoking marijuana. And I went to get my assistant coach to verify the existence.

There was—and I—by the time we got back, the room had been sprayed with what had to be a mixture of every

aftershave lotion and hair spray and deodorant that those kids could find. There were four kids to a room.

As I looked back on the injury later that afternoon on the way home, it's a long bus ride, I thought the kid didn't react like he had reacted a hundred times in the past. There was no way of particularly proving at that point in time whether he was under the influence. Certainly a strong suspicion.

Q. And have you ever observed any football game films where you got that same kind of strong suspicion that something was wrong?

A. Yes. You practice certain situations over and over in football to prevent injuries, to the kids to react to make—you know, win ball games, to protect themselves. That's my first rule when I coach football was to teach the kids to protect themselves. And during this period of time [113] there would be situations where I was looking at the film and the kid would get an ankle rolled on, you know, opposing player would come up to block him and get to his ankles and the kid would get a sprained ankle.

And I'd watch it and I'd think why didn't he react? I mean, it's just like, you know, you watch, you say to yourself we've drilled on that particular thing a hundred times a week and the kid wouldn't react. And not always were they injured, but it was a situation where they just didn't react in the manner that they would normally react, just as athletes—as people walking down the street would react.

Q. Did the wrestler ultimately tell you that he had been under the influence?

MR. CHRIST: Your Honor, hearsay.

THE COURT: Sustained.

Q. (BY MR. MULLMAN) In response to your observations of these films and your perception of the wrestling, did you decide to do anything about what you perceived as a problem in Vernonia?

A. Not just as a result of that. They were the—let's say the culmination, the point at which I said we're

losing these kids, we had to do [114] something, we have to try something different than we've been trying.

Could I go back to an experience that I had earlier in coaching?

Q. Sure.

A. Okay. In November of 1977 I was teaching at—coaching at Glendale High School, and on the girls' volleyball team had a girl that was extremely popular in school, and was rather heavyset. We had our awards banquet on a Tuesday night. She got the award as the most inspirational volleyball player.

She went to a party, a going-away party for a girl that was moving the next day. Drank about one and a half beers and died of a heart attack in the middle of the party. The evidence about her death is that she had been using speed, diet pills that she had—that she had gotten from an aunt, unbeknownst even to the aunt she was taking them. The alcohol and the amphetamine reacted, she died, you know, 30 kids standing around.

The second hardest thing I ever had to do in teaching was to sit in first period the next day when most of those kids were there in the class. I [115] have no training to deal with that situation as far as how you handle grief. But it alarmed me and, you know, I just read on my own then about the reactions of different drugs ever since the girl died. And when—when these things began to occur and the statements by kids, especially about the use of speed, and I started a series of discussions with Mr. Aultman and I said, well, what—you know, what can we do to drive home the fact that these drugs are dangerous. You know, it's not the kids that are the enemy, it's the drug.

Q. About when did these conversations with Mr. Aultman begin?

A. Probably occasionally—by that I mean once every three or four months in 1987. More often than that in the spring of '88. By the—by February of '89 once every two weeks or so. And he was extremely reluctant

to talk about drug testing. We saw the article from Hawkins, Texas, and so we discussed that also.

* * * *

[118] Q. (BY MR. MULLMAN) I don't care what other people told you. I'm asking you what did you decide to do in particular?

A. I decided to do what I could to institute a mandatory drug testing policy at Vernonia—at the Vernonia school district.

Q. What did you do?

A. I talked to Mr. Aultman. As he stated, we had had a discussion at the faculty meeting over the issue. I said I will be more than happy to do the legwork to find out if there are any cases that have been upheld so that we can do this. He gave me information to spend a hundred dollars or so on phone calls to track down information.

I called *Time Magazine* in New York City to get the phone—the names from Hawkins Texas because *The Oregonian* hadn't kept a copy. *Time Magazine*, as I understand at that time it was an insert. I called the superintendent of Hawkins School District, talked with Mike on the phone, felt uncomfortable at some points. I felt that education had failed, everything I'd done in my life that I believed in didn't work—

Q. Did you get a copy of the Hawkins policy?

A. Yes. I talked to him—I asked him at the time, I said did you—has this gone to court, because it seemed rather broad. They tested everyone—

Q. The entire student body?

A. Everybody that was in any form of extracurricular activity, including leadership and so on. My concern wasn't that somebody in leadership was going to get hurt or, you know, have these health problems, my concern was kids on the football and wrestling teams weren't reacting and, you know, they were getting hurt.

I—I asked him if there were any cases that had been taken to court because theirs had not been. He said

yes, there was a case in Indiana that had just been settled in late 1988, Tippecanoe County in Indiana. And I said—asked him if he could provide me with materials. He said he would [120] try to do that. He then sent me a copy of their program from Hawkins.

Q. Did you also get materials from the Tippecanoe—

A. Yes, a few months later.

Q. And using those materials, what did you do?

A. I worked in conjunction with Mr. Krost (PH), who was our athletic director at that time, and Mr. Aultman. Through the community we came up with the policy that we now have.

Once we received the Tippecanoe information, the court in Indiana had made it abundantly apparent that there was no constitutional basis to be testing kids from leadership or from the band, that it wouldn't fly, you know, our goal was to protect our athletes. That's—that's where our major concern was. Therefore, the case in Indiana seemed to fit better than the program at Hawkins, so we made some changes in what we had proposed.

* * * *

[128] Q. (BY MR. MULLMAN) Mr. Svenson, we had just completed, I think, at the break discussing the diagram of the locker room. What I would like you to do now, is turn to the Big Elk. There was some testimony about that.

Did you during the 1988 school year have occasion to have members of the Big Elk in your particular classroom?

A. Yes.

Q. And there's been some testimony that there were eight or nine, perhaps as many as ten [129] members of that. Is that your recollection?

A. The Big Elk was—it wasn't like a club of dues and stuff, it was—nobody demonstrated a call, you know, the mating call.

Q. I don't believe you need to do that.

A. There were probably ten or so kids that were the core of what became a group of approximately 30 to 35 kids that were—would walk down the hall and greet each other with this obnoxious greeting.

Q. And these individuals, were some of those individuals in the Big Elk students athletes?

A. I can only think of one that wasn't.

Q. And what type of behavior did you observe of these students?

A. In my classroom?

Q. Yes.

A. I had these students in sixth period U.S. History class. These are—they're sitting in the classroom now and would be talking about let's say the Holocaust, as an example, because I remember this incident specifically. And these two kids started (demonstrating) laughing. Just burst out laughing.

I thought maybe—I thought maybe had [130] done something, so I stopped and said, "what's so funny?" "Nothing." So I go on and that pattern was—that pattern was repeated two or three times that day. I took the kids out. You know, I tried in all my teaching career of 23 years to not have to send kids to the office. So, you know, I took them out on the porch behind my classroom and just talked to them and said, "this is not appropriate. You can't just burst out laughing at a—you know, these kinds of issues."

Then we come back in the class. Other kids in the group would then—as we're trying to discuss this or whatever would start just almost yelling at these kids, you know, about different—different things.

This giggling between these two kids went on—off and on for two or three months. It was—the—then, you know, there were a couple of other kids that would come into class four days out of five with no problem, and then all of a sudden it would be just a—you know, like I came in one day, I walked in my classroom and a kid was

laying underneath three desks. You know, and I said, "what are you doing?" "I was just taking a nap, man."

* * * *

[131] Q. Did you notice that your disciplinary referrals increased in the '87-88 period?

A. Mine did, yes.

Q. In your own classroom?

A. Yes.

Q. You testified earlier that one of the reasons that you wanted to adopt drug testing policies regarding safety—

MR. MULLMAN: And I apologize, Your Honor, I'm not sure I covered this. I want to make sure I did.

Q. (BY MR. MULLMAN) What concerns with [132] safety did you have for those athletes?

A. First and foremost I think anybody that coached at that period of time had to be influenced by the death of Len Bias, the basketball student at the University of Maryland and Don Rogers a football player with the Cleveland Browns who suffered a heart attacks from overdoses of cocaine.

I was concerned that kids would be using amphetamines and they'd get hurt and not—you know, not be able to recognize it and play beyond what they could—you know, normally you can play football in some amount of pain, but amphetamines may mask like a knee injury on the field and the kid may not feel the full effect of it and continue to play and injure it worse.

I had an almost fanatical fear of a kid being hurt, being taken to the hospital, refusing to admit that he was using a certain—I'll say speed, and being injected with pain killers or whatever and having a reaction to it. Those kinds of concerns. I was concerned because you just—I don't know, I guess because I want the kids to use the athletic program to—as a way to get through being a teenager and have in Vernonia especially have something to do, but get through it safely.

[133] I don't—you know, I don't want any kids to emerge from our program not being able to function and those kinds of concerns.

Q. Were you concerned about the safety of teammates and opponents?

A. In a sense that—that the—if a student was using drugs and playing in particular—in particular football and wrestling, you could—there is a chance that kids could go outside the rules of the game and create injury situations to opponents or come flying into a pile in football for example with his head down and hit a teammate in the back. Those kinds of things. I have to say that that concern was there, but it wasn't the primary concern. My primary concern was for each individual's kid's own protection.

Q. From your experience is there a difference in the pressures between, say, interscholastic athletics and say for instance the P.E. class?

A. Yeah. There's no real comparison between P.E. classes and interscholastic athletics in terms of, you know, for example pressures on the kids to perform. If a boy comes into a P.E. class, for example, in my weight training class and says he's [134] not feeling—you know, feeling well, he has a strained muscle in his back or something, he doesn't participate and usually they will tell you that.

Kids want to play in games and oftentimes they won't tell a coach when they're hurt. And there's that pressure. The workouts themselves are—are much, much more strenuous. First of all, in a high school P.E. class the actual activity length of time by—you know, by dressing down and having to shower and so on, the maximum time is 33 to 35 minutes of exercise, and that includes—that would include a period of time to stretch and warm up.

In wrestling, for example, when kids use—use the idea that they determine the physical difficulty of the practice by the number of pounds they lose, they sweat off during

a practice, they have a two-pound practice or three-pound practice, or once in a while a four- or five-pound practice, depending on the kid. And there's just—there's no pressure, for example, in teaching a class. There's no pressure. Nobody says you know, "did you win?"

You know, you don't go home on Friday [135] afternoon after classes and say, "did you win?" And the kids aren't asked when they come out of P.E. class, "did you win today?" You know. I mean, there's that kind of competitive situation.

Q. Prior to imposing this drug policy did you try other educational programs to reduce drugs in the school system?

A. Yes.

Q. What did you do?

A. Well, I teach modern problems class which is a class that's designed to deal with whatever problems the kids find important. So we dealt with the problem of drugs. You know, we discussed the health aspect, the social aspect, what pressures were put on kids to do drugs, was their peer pressure. You know, those kinds of things.

I've done the reports, the kids have researched the drug, effects of the drugs, we looked at movies. We participated—my student leadership class participated in the month long program we talked about. The—this—we were sort of the climax of the four-day thing in the spring right before spring vacation of '88. My student council, we shut off the lights in the gym.

The student council kids came in one at a [136] time with a flashlight under their face, you know, with their faces in white and read off the statistic about, you know, I'm number—we talked about the number of people killed by drunk drivers in the last 20 years and kids would say, "I'm number 5,102, I was driving to the prom," so on, so forth, you know. Had the lights out and just the flashlights.

The student council kids totally forgot about the assembly. However, the next day five of our best sopho-

more athletes skipped school and went to one of their kids' houses and were arrested for drinking and using marijuana.

Q. Now, this month-long program culminating in the four-day event—there's some confusion about the date. Are you fairly certain about when that was?

A. It was when the group that had been—you know, Big Elk group, it's when they were sophomores. They graduated in 1990. So they were juniors in '88-89, so they would have been sophomores in '87-88, yes.

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[139] CROSS-EXAMINATION

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Q. Are you close enough to hear the sound of urination?

A. Our locker room sometimes because of echoes from the gym and so on, so forth, sometimes you would be very difficult to hear it. If there was no P.E. class or any other activity in the gym or anywhere, I could hear them probably if I was to listen close.

Q. Have you caught anyone attempting to cheat?

A. Have I personally?

Q. Yeah.

A. No.

Q. You would agree, wouldn't you, that the risk of injury is inherent in all sports, isn't it?

A. Yes.

Q. And the degree of risk depends on sports?

A. Yes.

Q. It's greater risk for contact sports than for non-contact sports?

A. Yes.

Q. Now, you have four non-contact sports in the district, don't you; golf, volleyball, track [140] and cross country?

A. I believe that's correct.

Q. So really what you're concerned about is wrestling and football?

A. No. What I'm concerned about is the safety of every single kid that participates in athletics.

Q. But the risk is greatest in those two sports, isn't it?

A. Yes.

Q. You mentioned two athletes who died, you believe, from cocaine overdose. Who were those?

A. Those—to say that I believe they died from cocaine overdose makes it sound like that was my opinion. The autopsy reports on both Len Bias and Don Rogers were published in every newspaper in the country saying yes, they died from heart failure caused by an overdose of cocaine.

Q. Len Bias was a basketball player?

A. From the University of Maryland, yes.

Q. Don Rogers, what was his—

A. He was a defensive back for the Cleveland Browns.

Q. Neither one of them died on the playing field, did they?

[141] A. No, they did not.

Q. You talked a little about the educational program. That was tried before the drug testing program?

A. Yes.

Q. You didn't see immediate results apparently?

A. No.

Q. Do you expect immediate results when you teach students something?

A. In areas where their health, immediate health is at risk, you could anticipate that after a period of weeks that there would be some indication, yes.

Q. Well, takes time to change behavior, doesn't it?

A. That depends on the behavior, I believe.

Q. Well, things seem better now than before, correct?

A. For who?

Q. For you as a teacher and coach?

A. In what manner do you mean?

Q. Student behavior, deportment.

A. Yes.

Q. And that could be the result of the seeds [142] that you sowed back in the education program?

A. Those kids that are in my classes now were not in those education programs.

Q. Maybe their older brothers and sisters were?

A. Some of them were, yes.

Q. Education is a long-term process, isn't it?

A. Yes.

Q. I guess I sense that you feel like you failed the educational mission when you adopted the drug testing policy, is that fair?

A. I don't feel that I failed. I felt that myself and my colleagues did everything educationally that we could find to do to change the behavior of the students. I believe and I believe today that the drugs mask the intellect of the person. And I don't think that you can educate people as long as they're under the influence of drugs. I don't think that you can keep them safe. I don't think that you can keep them healthy.

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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

(Title Omitted in Printing)

PARTIAL TRANSCRIPT OF
DEFENDANT'S TRIAL EXHIBIT 106—
Perpetuation Deposition of Robert L. DuPont, M.D.,
Expert Witness for Defendant

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[37] Q. In your opinion, would you expect that teachers and coaches and administration staff in a high school or a middle school could effectively observe students and determine which ones were under type-two impairment for marijuana use?

A. No. In fact they'd even have some trouble with type-one because they see such a wide swing of behavior. Adolescents are characteristic for giving a lot of behavior, including mood swings and unpredictability, and all kinds of things. So it becomes even difficult to identify type-one impairment among adolescents because they're so all over the place. But type two, they'd have no possibility of doing that. So I think the fact is that even if they were specially trained they would miss 90 percent, more than 90 percent of the impairment caused by drugs and alcohol.

Q. In the drug-abuse treatment field, what is the standard for determining impairment among patients?

A. The only standard is the drug test. I know of no other way that anybody who—counselors or—who counsels or treats drug addicts could do it [38] without a drug test. They would never, in my experience, use observation as the basis. And these are people that are known to be drug addicts. You think about how different that is from a school situation where you don't know the person is a drug addict. You see them in a sea of

faces. And here's a counselor who knows this person is a drug addict and still can't tell whether the person is using or not. And that's why they do the drug test.

* * * *

[45] Q. What affect does school leaders' or student leaders' drug use have upon this progression on other students?

A. Well, within—I think this is true for all human populations, but it's particularly true in the middle school and high school area—and that is that the definition of what's desirable, the [46] definition of how you're a winner, is made on the basis of the status of the individual in the peer group. And the people who are at the top of that status hierarchy are the ones whose behavior is going to be emulated by the other students. So that the leaders play a very powerful role in terms of shaping the behavior of large numbers of students in the classes. And what they do about drugs makes an enormous difference about what other kids are going to do who are watching them and making up their minds about what they want to do.

Q. Doctor, are you generally familiar with kinds of interscholastic athletic events that middle school and high school students participate in?

A. Yes, I am.

Q. Have you observed middle school and high school interscholastic athletic events?

A. Yes, I have.

Q. Are you generally familiar with the risks and physical stresses associated with interscholastic athletics for middle school and high school students?

A. Yes, I am.

Q. Doctor, do you have an opinion of whether students who participate on interscholastic athletic teams in the middle school and high school level who [47] use drugs are at a greater risk of injury to themselves or to others than those students who do not use drugs?

A. Yes, I have an opinion.

Q. What is that opinion?

A. That they are a substantially greater risk.

Q. What is the basis of your opinion?

A. There has been an enormous amount of research on accidents and injuries in large numbers of contexts, including studies of people's behavior when they have been given drugs, to watch how they behave. All of the elements that go into having an accident occur have been studied in laboratory settings to demonstrate that the drug experience is highly correlated—with drug intoxication impairment—is highly correlated with accidents of all kinds. So the accidents associated with athletics are not different in terms of the mental capabilities required to avoid the accidents or the impairments that promote the accidents than any other sort of accident.

And I just would call your attention to one particular study that I think is very compelling in the state of Maryland. The shock trauma unit—that's, of course, where my office is in Maryland—[48] studied 123 consecutive people who were brought there after accidents, injuries and accidents of all kinds, vehicular accidents and any other kind of accident, accidents in the home and biking and everything, every kind of accident in the state, and it was surprising to many people that 35 percent of the people had blood levels of marijuana. Now, unlike a urine level, a blood level means that they'd used very recently before the accident, and that was higher than the percentage who had used alcohol. The alcohol percentage was 33 percent. So that was pretty powerful evidence.

Other studies have shown very high correlation with cocaine in accidents. I don't know of any studies specifically of athletes generally as a group, or of high school athletes, but all the elements that go into the risk of an injury and an accident in an athletic context are present in every other kind of human activity that has been clearly shown that drug use is a major risk factor in those situations. That's the reason that safety is one of the two

principle indicators for drug tests is because of the connection between drugs and accidents.

Q. And how is it that drug use increases these [49] risks?

A. It leads people to take risks. It leads people to be careless. It leads people not to follow instructions to reduce the risks. So that people are impulsive, careless; they're operating outside of the guidelines that they have learned and, therefore, increase their probability that they're going to have an injury.

Q. How would a middle school student who's under marijuana impairment be at a greater risk of injury while participating in football, for example?

A. The person would not be—if they were trained, for example, to tackle above the waist to try to reduce injury, they might go for an easy tackle and go after the other person's knees. They might use a blocking technique that they were specifically trained was a risk to the other person and use it anyhow. They might be involved in using a technique in terms of their own behavior that would put them at risk of a head injury or spinal cord injury or some other kind of injury.

Q. So the risks associated with drug use to high school and middle-school athletes is not only to themselves, but to those other students who are on the athletic field or the practice in the gymnasium [50] with them; is that correct?

A. That's correct. And I think it's very important to understand—this is a general statement about drug problems, including accidents—that one of the concerns is that somehow the drug user is, himself, the only victim of his drug use. One of the myths about drug problems, including accidents, is that the drug user is only risking his own health or safety, and this is clearly not the case. The consequences of the impairment of drug use are shared by everyone who shares the environment in which the drug-impaired person is, and that very much includes the athletic field where the body is being pushed to the limits.

That's what competitive athletics is all about. And where there is clearly a substantial risk, athletes have injuries. It's a ubiquitous aspect of athletic competition is injuries. And a lot of energy is devoted to training athletes how to avoid injury to themselves and other people in the—on the playing field. And drug use is—undermines that. Drug use takes away the protections that exist, not only for the individual himself, but for the other people with whom he shares that practice field.

Q. Are you generally familiar with the types of [51] athletic injuries that are common in middle schools and high school interscholastic sports?

A. Yes, I am. And I think it's important to know that those are the major—by far the biggest amount of injuries—largest amount of injuries related to sports, because so many more people are involved in the middle school and high school athletics.

If you're talking about sport safety, where the action is is not at the professional or the college level but it's at the middle school and the high school. The intensity is very high. The training is much less than it is at the college and professional level, and the numbers of people involved, including the injuries, are so much greater. So I think if one is concerned about reducing injuries in sports generally, and I think everybody in sports medicine is, the action is in the middle school and high school population.

Q. How would drug use affect a student athlete's perception of an injury he or she may have sustained out on the volleyball court, for instance?

A. The person is very likely to play even with the injury and be oblivious of it, if the person is impaired with drug—by drug use.

[52] Q. Are there other effects, for instance, of cocaine or amphetamines that an athlete who is engaged in some activity at a high level should be concerned about?

A. Other—say that again.

Q. Are there other—what are other possible effects of cocaine use on an athlete—

A. Oh.

Q. —who's engaging in a strenuous activity?

A. Remember I was talking about the Len Bias example. He wasn't on the athletic field when he died, but that would be an example of the sort of thing. Cocaine, in particular, because of its effect on the heart, has an unpredictable effect, and it does raise a substantial risk for cardiac arrest for—and a fatal arrhythmia. So that cocaine in particular is a risk, not just in terms of playing through pain or not attending to the training that the person has, but also in terms of the heart danger because the athletics itself often raises—I mean, does always raise the heart rate in competitive athletics to high levels. And you add to that the unpredictable effect of cocaine and you have a very dangerous combination.

Q. If a student has used cocaine while [53] participating in an athletic event, for instance, a handful of times, does that necessarily mean that that student will always—will not encounter any negative effect?

A. No. It could be very unpredictable. It can be the tenth time or the hundredth time that the person has a problem. It doesn't happen right away. In fact, in general, if drug problems happened earlier and more predictably, we wouldn't have the drug use that we do in this society. The way it happens is a delay with respect to any individual, uncertain expression of the negative consequence, and that permits the denial to go on, and that's one of the major factors that perpetuates the drug addiction.

Q. Are these risks associated with drug use for interscholastic student athletes greater than for those students participating in a P.E. class?

A. Well, the level of intensity is enormously different in the typical interscholastic competition from the P.E. class. I think they're in the same family, but the relative risks are very different in terms of the—in terms of

the intensity, the speed, the effort. The duration of the effort is much greater in interscholastic than it is in a P.E. [54] class.

* * * *

[55] Q. In your opinion if a student athlete tests positive for the presence of cocaine, marijuana or amphetamines, is that student under substantial risk of injury to him or herself or to others?

A. Yes, I believe that student is.

MR. POWELL: Sure. Why don't we take a break for about five minutes.

(Recess.)

MR. POWELL: Back on the record.

Q. By MR. POWELL: Doctor, is it the impairment [56] effects that make students who are testing positive for drugs at a greater risk than other students?

A. Yes.

Q. And can you just briefly summarize what those impairment effects are?

A. The main effects have to do with the fact that the student is distracted by what's going on in his or her brain from the drug use. So it has to do with not attending well to whatever else it is that's going on. So it's kind of a distraction problem. But also there are specific problems that happen; for example, the dulling of pain, the difficulty of judging time and distance properly, memory impairments where the person has trouble recalling directions and has trouble recalling and using training. It has to do with risk-taking where a person is prepared to put himself or herself at added risk. So there's a very broad range of impairments that are related to drug use that directly lead to increased risk of accidents in all settings, including student athletics.

Q. Doctor, in your opinion, are there substitutes for drug testing by urinalysis to detect drug impairment among high school student athletes?

A. Well, there has been a very large effort [57] made to find suitable impairment tests. And the basic reason-

ing for this is to find some kind of a screening test that would be the equivalent of the roadside sobriety test to establish probable cause or a reasonable basis for a drug test. So there's been a lot of effort made to look for those sorts of tests. It's a major funding area of the National Institute on Drug Abuse. The simple summary of the report of that work is that, with some interesting exceptions, it has not proven to be of any value. In fact, it actually creates problems when these sorts of tests are introduced, because the tests are not well correlated with drug use or drug-caused impairment; they both under identify drug problems and over identify other problems. So that they end up missing large numbers of people who have drug-caused impairment, and they include people who have no impairment whatsoever in them. They're also extremely subject to subversion. The simple thing that is done with these tests is for the drug users to learn ways to get very low baselines on the tests, and then when they're retested, they don't—even when they're very impaired they still pass the test.

So we could talk in some detail—I don't know how much detail you want to get. But the bottom [58] line is that in no setting is there an impairment test of any kind. People talk about the rapid-eye movement test, for example, computer-assisted testing, as well as simpler kind of tests like hand/eye coordination and other kinds of things, and none of these have proved useful in any setting whatsoever as an alternative to the drug test. So in every setting where there's a concern about safety, the drug test is the test that is used.

One other thing I should say about some of the tests, the one from the Los Angeles Police Department, which is probably the best of the performance tests, takes 45 minutes for each person. You think about what that means. That means that it takes a trained individual 45 minutes to assess impairment of a single person. Well, that obviously makes it totally unsuitable for any kind of screening purpose. And its application, outside of a

very narrow one in law enforcement, even if it worked, would be—it would be irrelevant.

* * * *

[71]

EXAMINATION

BY MR. CHRIST:

Q. Doctor, have you been to Vernonia?

A. No, I have not.

Q. So you have no firsthand knowledge of the extent of the alleged drug problem there, do you?

A. I do not.

Q. Likewise, you have no firsthand knowledge of the affects of the school's drug testing policy on students there, do you?

A. I do not.

Q. You've never met my client, have you?

A. I have not.

Q. So you have no idea how this policy is affecting my client?

A. I do not. That's correct.

Q. Wouldn't you agree that some risk of injury is inherent in all sports?

A. Oh, yes, sir.

Q. I think you testified that the risk of injury to the athlete or his opponent increases if the athlete is under the influence of illicit drugs; is that correct?

A. Yes, sir.

Q. Wouldn't you agree that the degree of risk [72] depends upon the sport?

A. That's one of the factors.

Q. And the risk would be greater for, say, a contact sport such as football than a non-contact sport such as volleyball, cross-country or track?

A. Correct.

Q. Wouldn't you agree that the risk of injury to your opponent is negligible in a non-contact sport?

A. In general, I think that that's true, yes. Volleyball you're only on your side of the net.

Q. And the risk of injury would be diminished to the athlete himself in a non-contact sport, too?

A. That's right.

Q. Do you know what sports the Vernonia School District offers?

A. I think a fairly broad range, but I don't know exactly which sports.

Q. Well, you say "a broad range." Tell me what sports you think they offer.

A. Basketball, baseball, football, volleyball, track, would be what I would assume, and maybe some others. I don't think they have hockey, for example.

Q. But you don't know for sure what sports they offer?

[73] A. No.

Q. I take it you're a proponent of random drug testing?

A. That's correct.

Q. In fact you advocate random drug testing for everyone, don't you?

A. Well, as much as I can sell it.

Q. Okay. For every segment of the population?

A. Yes, sir.

Q. You've written articles in favor of universal random drug testing?

A. That's correct.

Q. And you believe in that proposition, I take it?

A. I do.

Q. Have you written any papers on the particular subject of illegal drugs in grade school or high school athletics?

A. No, I have not.

Q. You haven't conducted any research on that particular subject, have you?

A. No, I have not.

Q. Are you aware of any one who has?

A. No, I'm not.

Q. I think you testified, if I heard correctly, [74] that the incidents of illicit drug use by grade school and high school students has declined in recent years?

A. Yes, sir.

Q. From a high in the mid-1970s; is that correct?

A. Yes.

Q. That's the national trend?

A. Yes, sir.

Q. And the Oregon trend corresponds?

A. Yes, that's correct.

Q. And you attributed the decline to greater student awareness of the ill effects of drugs?

A. Two factors. That is one, and the other is the decreased tolerance for drug use.

Q. And greater student awareness comes about through education and counseling, doesn't it?

A. Well, a lot of things. I think Len Bias—for example. The biggest increase we ever had in perception of risk was between '86 and '87 for the drug cocaine.

Q. Now, you mentioned Len Bias. He was a basketball player, wasn't he?

A. Yes, sir.

Q. At the University of Maryland?

[75] A. Yep.

Q. He didn't die on the basketball floor, did he?

A. No, he didn't. He died in a dormitory though.

Q. And the cause of his death, do you know?

A. Yes. Cocaine use. It stopped his heart.

Q. Was that due to one large dose or—

A. He'd been using it all through an evening. I don't know how many doses. It wasn't just one though. He died at about 5:00 a.m., to my recollection.

Q. I think you spoke about a perceived progression of drug use among school children.

A. Yes, sir, a stepping-stone hypothesis is what it's called.

Q. That's what we used to refer to as leading to harder drugs?

A. Yes.

Q. That progression is not inexorable, is it?

A. No, that's right. A lot of people don't go to the next step, but each of those steps, and it depends on which step it is, what the percentage is, but many people do not go to the next step.

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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

(Title Omitted in Printing)

**EXCERPTS OF PLAINTIFFS' TRIAL EXHIBIT 4—
DEFENDANTS' RESPONSE TO PLAINTIFFS'
INTERROGATORIES TO DEFENDANT**

Defendant Veronia School District hereby responds to Plaintiffs' Interrogatories to Defendant as follows:

INTERROGATORY NO. 1: Has any student been injured while under the influence of drugs in participating in a district-sponsored athletic event? (For each injury, please identify the student who was injured, the date of injury, the sport in which the injury occurred, and the name of the coach who was supervising the sport at the time of the injury?) [sic.]

RESPONSE:

The District has reason to believe that a student was injured while under the influence of drugs while participating in a District-sponsored athletic event, although this was not confirmed through tests. This incident occurred in February 1989 in a wrestling match under Coach Ron Svensen. The student name will not be released as it would result in a violation of the Family Education and Privacy Rights Act (20 U.S.C. § 1232g and ORS 336.195).

INTERROGATORY NO. 2: Has any student caused an injury to another student while the first was under the influence of drugs in participating in a district-sponsored athletic event? (For each injury, please identify the

student who was injured, the date of injury, the sport in which the injury occurred, the name of the coach who was supervising the sport at the time of the injury?) [sic.]

RESPONSE: The District has not been able to confirm through tests or through any other means that any student has caused an injury to another student while the first was under the influence of drugs while participating in a District-sponsored athletic event.

INTERROGATORY NO. 3: Does defendant suspect James Acton of taking drugs? (If so, please specify in detail why it suspects him of taking drugs.)

RESPONSE: No.

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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON

(Title Omitted in Printing)

PARTIAL TRANSCRIPT OF
PLAINTIFFS' TRIAL EXHIBIT 5—
Deposition of Ellis Mason,
Superintendent of Vernonia School District

* * * *

[7] Q. Do you know what percentage of your students participate in a sports program?

A. No.

Q. Do you have any way of finding out?

A. Sure.

Q. How would you do that?

A. I would ask the building principals to give me a list.

Q. Are you required by state law to offer sports?

A. No.

Q. Do you think participation in sports is an important part of the school experience?

A. Yes.

Q. Does your curriculum included physical education?

A. Yes.

Q. At what grade levels?

A. I believe it starts at kindergarten, K through 8 is required, and we have two required units at the high school.

Q. Then is it an elective beyond those two units?

A. Yeah.

Q. What I mean by that, if a students wants more P.E. they could?

A. If it was available. I am not sure spacewise how much of it is available.

[8] Q. In the P.E. classes do students play some of the sports you previously mentioned?

A. Yes.

Q. Do you require drug testing as a condition of participating in P.E.?

A. No.

Q. Do some of your students drive cars to school?

A. Yes.

Q. Do you have district regulations regarding driving cars to school?

A. I don't believe so.

Q. Do the students who drive cars include both athletes and non-athletes?

A. Yes.

Q. Do some of your students take illegal drugs?

A. I don't know that.

Q. Have you tried to find out?

A. Have I tried to find out? I don't understand.

Q. Have you done anything to try, other than mandatory drug testing, to ascertain whether any of your students are taking drugs illegally?

A. Yes, we have.

Q. What have you done?

A. I believe it was in the fall of 1990 we had a police officer, state police officer, come into the district [9] and train some of the administrators in drug detection, and I believe it was using what they term the Rapid Eye Movement Test.

* * * *

[12] Q. Were the surveys anonymous?

A. Yes, I believe so. To—

MR. POWELL: There is not a question pending. Do you need to clarify your answer?

A. Yes. I think another aspect of what you may or may not be asking is a fact that we have a drug and alcohol program which we do for all the kids. We are required by law to do that. In terms of teaching kids

about the use of drugs and those type of things if that is—I don't know if that is what you are leading at, but we have that program in place.

Q. I will get to that in a moment. What I want to know now is what steps you have undertaken to ascertain that you have a problem. You have described these surveys. Other than the surveys, what have you done?

A. The staff have gone to the building administrators, the building principals, with concerns about things the kids were telling them, observations they have had. Those were not things that, quote, we have done per se, but they have occurred.

Q. Since the fall of 1989 have you determined that any particular student has taken illegal drugs?

A. Yes.

Q. More than one student?

A. I am not sure we have. I believe two confirmed [13] positive—no—yeah, maybe two confirmed positive.

Q. Were those students disciplined?

A. No.

Q. What did you do with those students?

A. According to our policy, the student was given an option of continuing to participate in the sports program, undergoing a weekly urinalysis and getting some type of drug or alcohol counseling, drug counseling. The student chose to do that in one case.

In another case a student came up positive on the first test and refused to take the second test and quit the program voluntarily.

MR. POWELL: I am going to make a quite belated objection, but I took this last series of questions to mean talking about determining drug use through the drug testing program as opposed to other instances where a student may have been caught with drugs or what have you. So to that extent I thought the question was vague, and that is the way I perceived Mr. Mason's answers through that last series. I don't know if you want to clarify that.

Q. I see the confusion. Let's go back over that. Other than through the mandatory drug testing policy, have [14] you determined that any particular students have used drugs illegally?

A. There have been students who have admitted that they have used drugs. And I am not aware that we have ever determined it outside of our drug program.

Q. Through the drug testing program you have determined that two particular students have used drugs?

A. I believe that is correct, yes.

Q. Do you know what percentage of students who play sports take drugs illegally?

A. No.

Q. Have you made any effort to determine that other than through the drug testing program?

A. No.

Q. Do you have any reason to believe that a greater percentage of athletes, student athletes, take drugs than students generally?

A. I think student athletes have reasons to take drugs which other students don't. Whether it is more than or less, I don't know.

Q. What would be those reasons?

A. Well, you get pumped up for a game, play with pain or eliminate pain so they could play.

Q. Do some of your students smoke tobacco?

A. Yes.

* * * *

[21] Q. Do you know if any students avoid random testing entirely for a year?

A. I don't know that. It is mathematically possible.

Q. So there is no guarantee that any particular student will be tested at least once during the year?

A. Yes, they are all tested at least once.

Q. At the first test at the start of the year?

A. Correct.

Q. Now, you said the start of the year. Do you mean the start of the sport season or the start of the academic year?

A. As an example, if a student plays football, which occurs in the fall, they get tested at the first of the academic year, or first of the season. If that same student plays basketball, they are not retested at the beginning of the season. If a new student comes out who has not participated in the fall and comes out for a winter program, they are tested.

Q. The testing is by urinalysis, correct?

A. That is correct.

Q. How is the urine specimen obtained?

A. The students urinate either into a cup or a vial of some sort.

* * * *

[24] Q. Do you know how many tests you do in a year?

A. No.

Q. I believe you said there have only been two positive results since you began.

A. Only two that I believe we have confirmed positive. That is to the best of my recollection.

Q. Do you know what grades those students were in?

A. I believe they were high school students.

MR. CHRIST: Why don't we take a break for a minute and I will see if I have anything else for you.

[Break].

[Student Athlete Drug Policy, EXB. 1, marked]

[Logger Handbook 1991-1992, EXB. 2, marked]

[Memo dated 10-4-89, EXB. 3, marked]

[Student Survey on Fall Sports, EXB. 4, marked].

Q. Mr. Mason, you have listed some of the drugs that you test for, not including marijuana. Do you test for marijuana, in fact?

A. Yes, we do.

Q. Do you test for steroids?

A. No.

Q. Do you test for any performance enhancing drugs, such as steroids?

[25] A. Not that I am aware—I don't know in terms of the physical manifestations of the drugs we test for whether they would be considered performance enhancing.

Q. Drugs specifically designed to enhance athletic performance as opposed to a drug that a particular student might perceive as enhancing his or her performance.

A. The only drug that I am aware of that would be classified as that would be steroids, and we don't test for steroids.

Q. I would like you to identify some exhibits, if you would, please. I am handing you Exhb. No. 1. Do you recognize that?

A. Yes.

Q. Can you tell me what that is, please.

A. This is a Student Athlete Drug Policy.

Q. Is that the current policy of your drug testing policy?

A. Yes, I believe so. Yes.

* * * *